

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TARRIQ PARKER,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER
LAWRENCE CHAN, SHIELD NUMBER 6046,
AND POLICE OFFICERS "JOHN DOE 1 - JOHN
DOE 10", SHIELD NUMBERS UNKNOWN,

Defendants.
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Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.

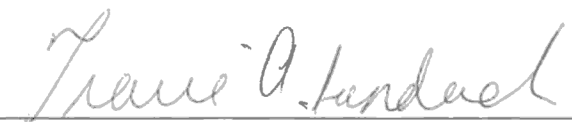
Basis of venue is place
of occurrence.

SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
November 13, 2019



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
TARRIQ PARKER
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER LAWRENCE CHAN,
SHIELD NUMBER 6046,
40th Precinct
257 Alexander Avenue
Bronx, New York 10454-1133

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
TARRIQ PARKER,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER
LAWRENCE CHAN, SHIELD NUMBER 6046,
AND POLICE OFFICERS "JOHN DOE 1 - JOHN
DOE 10", SHIELD NUMBERS UNKNOWN,**VERIFIED COMPLAINT**Defendants.
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Plaintiff TARRIQ PARKER by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, respectfully alleges as follows:

1. That Plaintiff TARRIQ PARKER is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof, a duly authorized police department, authorized to perform all functions of a police department under New York State Law, acting under the direction, control and supervision of the aforementioned municipal corporation CITY OF NEW YORK.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, was employed by Defendant CITY OF NEW YORK as a police officer.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

7. That at all times hereinafter mentioned, Defendants POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN were employed by Defendant CITY OF NEW YORK as police officers.

8. That at all times hereinafter mentioned, Defendants POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN acted within the scope of their employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendants POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

10. That on October 6, 2018, at approximately 4:45 A.M., Plaintiff TARRIQ PARKER was lawfully on 146th Street, between Third Avenue and College Avenue, in the County of Bronx, City and State of New York when he was suddenly accosted by members of the New York City Police Department including Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN.

11. At the aforementioned time and place, Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, placed Plaintiff TARRIQ PARKER under arrest. During the arrest, Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and

POLICE OFFICERS “JOHN DOE 1 - JOHN DOE 10”, SHIELD NUMBERS UNKNOWN, grabbed Plaintiff TARRIQ PARKER from behind and slammed him to the ground, jumped on Plaintiff, handcuffed him, and dragged him along the ground.

12. That at the aforementioned time and place, during the course of Plaintiff’s arrest, Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS “JOHN DOE 1 - JOHN DOE 10”, SHIELD NUMBERS UNKNOWN, without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted, attacked and abused Plaintiff TARRIQ PARKER.

13. That, as a result of this unprovoked assault, Plaintiff TARRIQ PARKER sustained injuries including, but not limited to, a left ulna fracture, suffered emotional distress, embarrassment, humiliation, and was deprived of his constitutional rights.

14. That within 90 days of the happening of the complained of incident, but more than 30 days prior to the commencement of this action, Plaintiff TARRIQ PARKER duly presented, served, and filed a Notice of Claim, in writing, upon Comptroller of Defendant CITY OF NEW YORK setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

15. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS “JOHN DOE 1 - JOHN DOE 10”, SHIELD NUMBERS UNKNOWN.

16. Upon information and belief, the municipal hearing in this matter was adjourned by the parties because Plaintiff TARRIQ PARKER was incarcerated and has not been rescheduled.

17. This action is commenced within one year and ninety days after the cause of action arose.

AS AND FOR A FIRST CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR ASSAULT

18. Plaintiff TARRIQ PARKER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

19. The aforementioned acts of Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, placed Plaintiff TARRIQ PARKER in apprehension of imminent harmful and offensive bodily contact.

20. As a result of Defendants' conduct, Plaintiff TARRIQ PARKER has suffered physical pain and injury, mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY**

21. Plaintiff TARRIQ PARKER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

22. That Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, touched Plaintiff TARRIQ PARKER in a harmful and offensive manner.

23. That Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, did so without privilege or consent from Plaintiff TARRIQ PARKER.

24. As a result of Defendants' conduct, Plaintiff TARRIQ PARKER has suffered physical pain and injury, mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

25. Plaintiff TARRIQ PARKER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

26. That the level of force employed by Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, was objectively unreasonable, unnecessary, unjustified and was delivered maliciously and sadistically to punish Plaintiff TARRIQ PARKER, all in violation

of Plaintiff TARRIQ PARKER's constitutional rights.

27. As a result of the aforementioned conduct of Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, Plaintiff TARRIQ PARKER was subjected to excessive force and sustained physical injuries.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR FAILURE TO INTERVENE

28. Plaintiff TARRIQ PARKER repeats, reiterates and realleges each and every allegation contained in this complaint.

29. That each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff TARRIQ PARKER's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

30. That, as a result of the aforementioned conduct of the individual Defendants, Plaintiff TARRIQ PARKER's constitutional rights were violated and he was subjected to cruel and unusual punishment and sustained physical injuries.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY

31. Plaintiff TARRIQ PARKER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

32. Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

33. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to (a) using force in an excessive, unreasonable, unnecessary and unjustified manner, and (b) using force with the purpose and intent of maliciously and sadistically punishing individuals in their

custody.

34. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff TARRIQ PARKER.

35. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff TARRIQ PARKER as alleged herein.

36. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff TARRIQ PARKER as alleged herein.

37. Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, while acting under the color of state law, was directly and actively involved in violating Plaintiff TARRIQ PARKER's constitutional rights.

38. All of the foregoing acts by defendants deprived Plaintiff TARRIQ PARKER of federally protected rights including, but not limited to, the right:

- A. Not to have excessive force imposed upon him;
- B. Not to have cruel and unusual punishment imposed upon him;
- C. To receive equal protection under the law.

AS AND FOR A SIXTH CAUSE OF ACTION
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

39. Plaintiff TARRIQ PARKER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

40. All of the aforementioned acts of Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, were carried out under color of state law.

41. All of the aforementioned acts deprived Plaintiff TARRIQ PARKER of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Eight and Fourteenth Amendments to the Constitution of the United States of America, in violation of 42 U.S.C. § 1983.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION**

42. Plaintiff TARRIQ PARKER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

43. That Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employees Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

44. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR NEGLIGENT TRAINING AND SUPERVISION**

45. Plaintiff TARRIQ PARKER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

46. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff TARRIQ PARKER. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

47. The failure of Defendant, CITY OF NEW YORK, to train, supervise, discipline or in anyway control Defendants POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, in the exercise of their employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff TARRIQ PARKER

**AS AND FOR A NINTH CAUSE OF ACTION
FOR RESPONDEAT SUPERIOR LIABILITY**

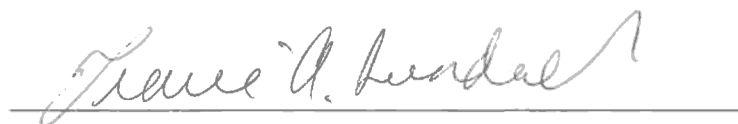
48. Plaintiff TARRIQ PARKER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

49. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

50. As a result of the foregoing, Plaintiff TARRIQ PARKER is entitled to compensatory damages in the sum of Two Million Dollars (\$2,000,000.00) and is further entitled to punitive damages in the sum of Four Million Dollars (\$4,000,000.00).

WHEREFORE Plaintiff TARRIQ PARKER demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER LAWRENCE CHAN, SHIELD NUMBER 6046, and POLICE OFFICERS "JOHN DOE 1 - JOHN DOE 10", SHIELD NUMBERS UNKNOWN, jointly and severally, in the amount of Two Million Dollars (\$2,000,000.00) in compensatory damages and Four Million Dollars (\$4,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
November 13, 2019

A handwritten signature in cursive script, appearing to read "Tracie A. Sundack", is written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
TARRIQ PARKER
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
November 13, 2019


TRACIE A. SUNDACK